

**CHAPTER lxvi.**

An Act to confirm certain Provisional Orders made by the Board of Trade under the Electric Lighting Acts 1882 and 1888 relating to Barry Clitheroe Gainsborough Glastonbury Heysham Kirkby - in - Ashfield Saffron Walden Walmer Whickham and Yardley.

A.D. 1904.

[24th June 1904.]

WHEREAS under the authority of the Electric Lighting Acts 1882 and 1888 the Board of Trade have made the several Provisional Orders set out in the schedule to this Act :

45 & 46 Vict.
c. 56.
51 & 52 Vict.
c. 12.

And whereas a Provisional Order made by the Board of Trade under the authority of the said Acts is not of any validity or force whatever until the confirmation thereof by Act of Parliament :

And whereas it is expedient that the several Provisional Orders made by the Board of Trade under the authority of the said Acts as set out in the schedule to this Act be confirmed by Act of Parliament :

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

1. This Act may be cited as the Electric Lighting Orders Confirmation (No. 1) Act 1904. Short title.

2. The several Orders as amended and set out in the schedule to this Act shall be and the same are hereby confirmed and all the provisions thereof in manner and form as they are set out in the said schedule shall from and after the passing of this Act have full validity and effect.

Orders in
schedule
confirmed.

A.D. 1904.

For protec-
tion of
Lancashire
County
Council.

3.—(1) Nothing in the Clitheroe Electric Lighting Order 1904 confirmed by this Act shall in any way limit or affect the powers of the Lancashire County Council to rebuild alter widen or repair the structure of any bridge upon which any work by the Order authorised shall be constructed or impose upon the county council any liability which was not by law imposed upon them prior to the commencement of the Order.

(2) If at any time the county council require to carry out works for rebuilding altering widening or repairing any bridge which might involve interference with any portion of the undertaking by the Order authorised they shall prior to the commencement of such work give the Undertakers one month's notice of their intention to carry out such works and if in order to avoid interruption to the supply by the Undertakers of electrical energy it is in the opinion of the county bridgemaster necessary to temporarily remove the mains and other electrical appliances belonging to the Undertakers from such bridge then the Undertakers shall (and they are hereby authorised) at their own expense temporarily carry their cables and wires across such bridge overhead or at the side thereof in such a manner as will not be a danger or inconvenience to the public or unreasonably interfere with the works to be carried out by the county council.

(3) When the rebuilding altering widening or repairing of such bridge shall have been completed the Undertakers shall have the same rights and powers with regard to such bridge and its approaches as they had before the works were carried out.

(4) If any dispute shall arise between the county council and the Undertakers with regard to this section the same shall be determined by an arbitrator to be appointed on the application of either party by the Board of Trade.

For pro-
tection of
Worcester-
shire County
Council.

4.—(1) Nothing in the Yardley Rural District Electric Lighting Order 1904 confirmed by this Act shall in any way limit or affect the powers of the Worcestershire County Council to re-build alter widen or repair the structure of any bridge upon which any work by the Order authorised shall be constructed or impose upon the county council any liability which was not by law imposed upon them prior to the commencement of the Order.

(2) If at any time the county council require to carry out works for rebuilding altering widening or repairing any bridge which might involve interference with any portion of the undertaking by the Order authorised they shall prior to the commencement of such work give the Undertakers one month's notice of

their intention to carry out such works and if in order to avoid interruption to the supply by the Undertakers of electrical energy it is in the opinion of the county council necessary to temporarily remove the mains and other electrical appliances belonging to the Undertakers from such bridge then the Undertakers shall (and they are hereby authorised) at their own expense temporarily carry their cables and wires across such bridge overhead or at the side thereof in such a manner as will not be a danger or inconvenience to the public or unreasonably interfere with the works to be carried out by the county council. A.D. 1904.

(3) When the re-building altering widening or repairing of such bridge shall have been completed the Undertakers shall have the same rights and powers with regard to such bridge and its approaches as they had before the works were carried out.

(4) If any dispute shall arise between the county council and the Undertakers with regard to this section the same shall be determined by an arbitrator to be appointed on the application of either party by the Board of Trade.

A.D. 1904.

SCHEDULE.

LIST OF ORDERS.

1. BARRY.—Provisional Order granted by the Board of Trade under the Electric Lighting Acts 1882 and 1888 amending the Barry Electric Lighting Order 1901.
2. CLITHEROE.—Provisional Order granted by the Board of Trade under the Electric Lighting Acts 1882 and 1888 to the Mayor Aldermen and Burgesses of the Borough of Clitheroe.
3. GAINSBOROUGH.—Provisional Order granted by the Board of Trade under the Electric Lighting Acts 1882 and 1888 to the Urban District Council of Gainsborough.
4. GLASTONBURY.—Provisional Order granted by the Board of Trade under the Electric Lighting Acts 1882 and 1888 to the Mayor Aldermen and Burgesses of the Borough of Glastonbury.
5. HEYSHAM.—Provisional Order granted by the Board of Trade under the Electric Lighting Acts 1882 and 1888 to the Urban District Council of Heysham.
6. KIRKBY-IN-ASHFIELD.—Provisional Order granted by the Board of Trade under the Electric Lighting Acts 1882 and 1888 to the Urban District Council of Kirkby-in-Ashfield.
7. SAFFRON WALDEN.—Provisional Order granted by the Board of Trade under the Electric Lighting Acts 1882 and 1888 to the Mayor Aldermen and Burgesses of the Borough of Saffron Walden.
8. WALMER.—Provisional Order granted by the Board of Trade under the Electric Lighting Acts 1882 and 1888 to the Urban District Council of Walmer.
9. WHICKHAM.—Provisional Order granted by the Board of Trade under the Electric Lighting Acts 1882 and 1888 to the Urban District Council of Whickham.
10. YARDLEY.—Provisional Order granted by the Board of Trade under the Electric Lighting Acts 1882 and 1888 to the Rural District Council of Yardley.

A.D. 1904.

Barry.

Short title.

Amendment
of section 6 of
principal Order.

Clitheroe.

Short title.

**Incorporation
of Electric
Lighting
(Clauses) Act
1899.**

Undertakers.

Area of supply.

Power to
break up
streets &c.

[Ch. lxvi.] *Electric Lighting Orders Confirmation* [4 Edw. 7.]
(No. 1) Act, 1904.

A.D. 1904.

Clitheroe.
Compulsory
works.

6. The streets and parts of streets throughout which the Undertakers are to lay down suitable and sufficient distributing mains for the purposes of general supply within a period of two years after the commencement of this Order as mentioned in section 21 of the schedule to the Electric Lighting (Clauses) Act 1899 are those mentioned in the Third Schedule to this Order.

Maximum
prices.

7. The maximum prices which may be charged by the Undertakers as mentioned in section 32 of the schedule to the Electric Lighting (Clauses) Act 1899 are those stated in the Fourth Schedule to this Order.

Commence-
ment of Order.

8. This Order shall come into force upon the day when the Act confirming this Order is passed and that day for the purposes of the Electric Lighting (Clauses) Act 1899 shall be the commencement of this Order.

S C H E D U L E S.

FIRST SCHEDULE.

AREA OF SUPPLY.

The borough of Clitheroe as constituted at the commencement of this Order.

SECOND SCHEDULE.

List of Streets not repairable by the Local Authority and Railway which may be broken up by the Undertakers in pursuance of the special powers granted by this Order.

(a) STREETS:—

The road from the junction with Edisford highway to Low Moor mill gates including St. Paul Street and High Street.

The east portion of Brownlow Street to Little Moor Road and such part of that road as lies between such junction and Whalley Road.

The roadways over Bawdlands and Pimlico railway bridges.

(b) RAILWAY:—

The Lancashire and Yorkshire Railway level crossing between Eshton Terrace and Corporation Street.

THIRD SCHEDULE.

A.D. 1904.

List of Streets and parts of Streets throughout which the Undertakers are to lay down suitable and sufficient Distributing Mains for the purposes of general supply within a period of Two Years after the commencement of this Order.

Clitheroe.

King Street Castle Street Market Place Church Street and Moor Lane from its junction with Castle Street to the United Methodist Free Church.

FOURTH SCHEDULE.

MAXIMUM PRICES.

In this schedule—

The expression "unit" shall mean the energy contained in a current of one thousand amperes flowing under an electro-motive force of one volt during one hour.

SECTION 1.

Where the Undertakers charge any consumer by the actual amount of energy supplied to him they shall be entitled to charge him at the following rates per quarter For any amount up to twenty units thirteen shillings and fourpence and for each unit over twenty units eightpence.

SECTION 2.

Where the Undertakers charge any consumer by the electrical quantity contained in the supply given to him they shall be entitled to charge him according to the rates set forth in section 1 of this schedule the amount of energy supplied to him being taken to be the product of that electrical quantity and the declared pressure at the consumer's terminals that is to say such a constant pressure at those terminals as may be declared by the Undertakers under the Board of Trade regulations.

GAINSBOROUGH ELECTRIC LIGHTING.

Provisional Order granted by the Board of Trade under the Electric Lighting Acts 1882 and 1888 to the Urban District Council of Gainsborough in respect of the Urban District of Gainsborough in the County of Lincoln.

1. This Order may be cited as the Gainsborough Electric Lighting Order 1904.

2. The provisions contained in the schedule to the Electric Lighting (Clauses) Act 1899 (with the exception of sections 83 and 84 of that schedule) are incorporated with and form part of this Order.

Incorporation of Electric Lighting (Clauses) Act 1899.

[Ch. lxvi.] *Electric Lighting Orders Confirmation* [4 EDW. 7.]
(No. 1) Act, 1904.

- A.D. 1904. 3. The Undertakers for the purposes of this Order and within the
Gainsborough. meaning of section 2 of the schedule to the Electric Lighting (Clauses) Act
undertakers. 1899 are the urban district council of the urban district of Gainsborough.
- Area of supply. 4. The area of supply for the purposes of this Order and within the
meaning of section 4 of the schedule to the Electric Lighting (Clauses) Act
1899 shall be the area which is described in the First Schedule to this Order
and is more particularly delineated on the map deposited together with this
Order at the Board of Trade by the Undertakers and signed by an assistant
secretary to the Board of Trade.
- Compulsory 5. The streets and parts of streets throughout which the Undertakers are
works. to lay down suitable and sufficient distributing mains for the purposes of
general supply within a period of two years after the commencement of this
Order as mentioned in section 21 of the schedule to the Electric Lighting
(Clauses) Act 1899 are those mentioned in the Second Schedule to this Order.
- Maximum 6. The maximum prices which may be charged by the Undertakers as
prices. mentioned in section 32 of the schedule to the Electric Lighting (Clauses)
Act 1899 are those stated in the Third Schedule to this Order.
- Commence- 7. This Order shall come into force upon the day when the Act
ment of Order. confirming this Order is passed and that day for the purposes of the Electric
Lighting (Clauses) Act 1899 shall be the commencement of this Order.

S C H E D U L E S.

FIRST SCHEDULE.

AREA OF SUPPLY.

The whole of the urban district of Gainsborough as constituted at the
commencement of this Order.

SECOND SCHEDULE.

*List of Streets and parts of Streets throughout which the Undertakers are to lay
down suitable and sufficient Distributing Mains for the purposes of
general supply within a period of Two Years after the commencement of
this Order.*

Church Street (from Acland Street to Market Street) Market Place
Silver Street Bridge Street (from Silver Street to Hickman Street) Market
Street Beaumont Street and Trinity Street.

THIRD SCHEDULE.

A.D. 1904.
 Gainsborough.

MAXIMUM PRICES.

In this schedule—

The expression “unit” shall mean the energy contained in a current of one thousand amperes flowing under an electro-motive force of one volt during one hour.

SECTION 1.

Where the Undertakers charge any consumer by the actual amount of energy supplied to him they shall be entitled to charge him at the following rates per quarter For any amount up to twenty units eleven shillings and eightpence and for each unit over twenty units sevenpence.

SECTION 2.

Where the Undertakers charge any consumer by the electrical quantity contained in the supply given to him they shall be entitled to charge him according to the rates set forth in section 1 of this schedule the amount of energy supplied to him being taken to be the product of that electrical quantity and the declared pressure at the consumer's terminals that is to say such a constant pressure at those terminals as may be declared by the Undertakers under the Board of Trade regulations.

GLASTONBURY CORPORATION ELECTRIC LIGHTING.

*Provisional Order granted by the Board of Trade under the Glastonbury.
 Electric Lighting Acts 1882 and 1888 to the Mayor Aldermen
 and Burgesses of the Borough of Glastonbury in respect of
 the Borough of Glastonbury in the County of Somerset.*

1. This Order may be cited as the Glastonbury Corporation Electric Short title.
 Lighting Order 1904.

2. The provisions contained in the schedule to the Electric Lighting Incorporation
 (Clauses) Act 1899 (with the exception of sections 83 and 84 of that of Electric
 schedule) are incorporated with and form part of this Order. Lighting
 (Clauses) Act
 1899.

3. The Undertakers for the purposes of this Order and within the Undertakers.
 meaning of section 2 of the schedule to the Electric Lighting (Clauses) Act
 1899 are the mayor aldermen and burgesses of the borough of Glastonbury.

4. The area of supply for the purposes of this Order and within the Area of supply.
 meaning of section 4 of the schedule to the Electric Lighting (Clauses) Act
 1899 shall be the area which is described in the First Schedule to this Order
 and is more particularly delineated on the map deposited together with this
 Order at the Board of Trade by the Undertakers and signed by an assistant
 secretary to the Board of Trade.

[Ch. lxvi.] *Electric Lighting Orders Confirmation* [4 EDW. 7.]
(No. 1) Act, 1904.

A.D. 1904. 5. The streets and parts of streets throughout which the Undertakers
Glastonbury. are to lay down suitable and sufficient distributing mains for the purposes
Compulsory of general supply within a period of two years after the commencement
works. of this Order as mentioned in section 21 of the schedule to the Electric
Lighting (Clauses) Act 1899 are those mentioned in the Second Schedule to
this Order.

Maximum 6. The maximum prices which may be charged by the Undertakers as
prices. mentioned in section 32 of the schedule to the Electric Lighting (Clauses)
Act 1899 are those stated in the Third Schedule to this Order.

Commence- 7. This Order shall come into force upon the day when the Act confirming
ment of Order. this Order is passed and that day for the purposes of the Electric Lighting
(Clauses) Act 1899 shall be the commencement of this Order.

SCHEDULES.

FIRST SCHEDULE.

AREA OF SUPPLY.

The borough of Glastonbury in the county of Somerset as constituted
at the commencement of this Order.

SECOND SCHEDULE.

*List of Streets and parts of Streets throughout which the Undertakers are
to lay down suitable and sufficient Distributing Mains for the purposes
of general supply within a period of Two Years after the commencement
of this Order.*

High Street.

Magdalene Street from the Market Place to its junction with Street
Road.

Benedict Street from Magdalene Street to the Police Station.

Northload Street from the Market Place to the Gasworks.

Chilkwel Street from High Street to Abbey House.

THIRD SCHEDULE.

MAXIMUM PRICES.

In this schedule---

The expression "unit" shall mean the energy contained in a current
of one thousand ampères flowing under an electro-motive force of
one volt during one hour.

SECTION 1.

A.D. 1904.

Where the Undertakers charge any consumer by the actual amount of energy supplied to him they shall be entitled to charge him at the following rates per quarter For any amount up to twenty units thirteen shillings and fourpence and for each unit over twenty units eightpence.

Glastonbury.

SECTION 2.

Where the Undertakers charge any consumer by the electrical quantity contained in the supply given to him they shall be entitled to charge him according to the rates set forth in section 1 of this schedule the amount of energy supplied to him being taken to be the product of that electrical quantity and the declared pressure at the consumer's terminals that is to say such a constant pressure at those terminals as may be declared by the Undertakers under the Board of Trade regulations.

HEYSHAM URBAN DISTRICT COUNCIL ELECTRIC LIGHTING.

Provisional Order granted by the Board of Trade under the Electric Lighting Acts 1882 and 1888 to the Urban District Council of Heysham in respect of the Urban District of Heysham in the County of Lancaster.

Heysham.

1. This Order may be cited as the Heysham Electric Lighting Order 1904. Short title.

2. The provisions contained in the schedule to the Electric Lighting (Clauses) Act 1899 (with the exception of sections 83 and 84 of that schedule) are incorporated with and form part of this Order. Incorporation of Electric Lighting (Clauses) Act 1899.

3. The Undertakers for the purposes of this Order and within the meaning of section 2 of the schedule to the Electric Lighting (Clauses) Act 1899 are the urban district council of Heysham whose address is Ingleboro House Heysham. Undertakers.

4. The area of supply for the purposes of this Order and within the meaning of section 4 of the schedule to the Electric Lighting (Clauses) Act 1899 shall be the area which is described in the First Schedule to this Order and is more particularly delineated on the map deposited together with this Order at the Board of Trade by the Undertakers and signed by an assistant secretary to the Board of Trade. Area of supply.

5. Subject to the provisions incorporated with this Order the Undertakers are specially authorised by this Order to break up the streets not repairable by the local authority which are mentioned in the Second Schedule to this Order and the tramways which are also mentioned in that schedule. Power to break up streets &c.

A.D. 1904.

Heysham.
Compulsory
works.

6. The streets and parts of streets throughout which the Undertakers are to lay down suitable and sufficient distributing mains for the purposes of general supply within a period of two years after the commencement of this Order as mentioned in section 21 of the schedule to the Electric Lighting (Clauses) Act 1899 are those mentioned in the Third Schedule to this Order.

Maximum
prices.

7. The maximum prices which may be charged by the Undertakers as mentioned in section 32 of the schedule to the Electric Lighting (Clauses) Act 1899 are those stated in the Fourth Schedule to this Order.

Commence-
ment of Order.

8. This Order shall come into force upon the day when the Act confirming this Order is passed and that day for the purposes of the Electric Lighting (Clauses) Act 1899 shall be the commencement of this Order.

SCHEDULES.

FIRST SCHEDULE.

AREA OF SUPPLY.

The urban district of Heysham as the same is constituted at the commencement of this Order.

SECOND SCHEDULE.

List of Streets not repairable by the Local Authority and of Tramways which may be broken up by the Undertakers in pursuance of the special powers granted by this Order.

(a) STREETS :—

Marine Parade Sefton Road Furness Road Royds Avenue Wright's Avenue Seawall Avenue Drewton Avenue Snowden Avenue Norton Avenue Rydal Road Clayton Road Grosvenor Road Parke Street The Arcade Cross Road between Marine Parade and Heysham Road opposite Stanley Road Cross Road between Marine Parade and Heysham Road opposite Gray's Nursery Bold Street Salisbury Street Cavendish Road Brunswick Road Byron Road Selborne Road Stanley Road Hampton Road Harrington Road Cumberland View Road Granville Road Fairfield Road Raglan Road Norton Road Dalton Road St. John's Road Knowlys Road Eardley Road Woborrow Road Woborrow Terrace Saint Mary's Road Trumacar Lane Moss Gate Foot Lane Sugham Lane.

(b) TRAMWAYS :—

The tramways of the Morecambe Tramways Company.

THIRD SCHEDULE.

A.D. 1904.

Heysham.

List of Streets and parts of Streets throughout which the Undertakers are to lay down suitable and sufficient Distributing Mains for the purposes of general supply within a period of Two Years after the commencement of this Order.

Heysham Road from the southern boundary of Morecambe to "Glen Copp" Cross Copp Marine Parade Sefton Road from Marine Parade to Selborne Road and Furness Road from Heysham Road to Saint John's Road.

FOURTH SCHEDULE.

MAXIMUM PRICES.

In this schedule—

The expression "unit" shall mean the energy contained in a current of one thousand ampères flowing under an electro-motive force of one volt during one hour.

SECTION 1.

Where the Undertakers charge any consumer by the actual amount of energy supplied to him they shall be entitled to charge him at the following rates per quarter For any amount up to twenty units thirteen shillings and fourpence and for each unit over twenty units eightpence.

SECTION 2.

Where the Undertakers charge any consumer by the electrical quantity contained in the supply given to him they shall be entitled to charge him according to the rates set forth in section 1 of this schedule the amount of energy supplied to him being taken to be the product of that electrical quantity and the declared pressure at the consumer's terminals that is to say such a constant pressure at those terminals as may be declared by the Undertakers under the Board of Trade regulations.

KIRKBY-IN-ASHFIELD ELECTRIC LIGHTING.

Provisional Order granted by the Board of Trade under the Electric Lighting Acts 1882 and 1888 to the Kirkby-in-Ashfield Urban District Council in respect of the Urban District of Kirkby-in-Ashfield in the County of Nottingham.

Kirkby-in-Ashfield.

1. This Order may be cited as the Kirkby-in-Ashfield Electric Lighting Order 1904. Short title.

A.D. 1904.

Kirkby-in-Ashfield.
Incorporation of
Electric Lighting
(Clauses) Act
1899.

Undertakers.

Area of supply.

Power to break
up streets &c.

Compulsory
works.

Maximum
prices.

Commence-
ment of Order.

2. The provisions contained in the schedule to the Electric Lighting (Clauses) Act 1899 (with the exception of sections 83 and 84 of that schedule) are incorporated with and form part of this Order.

3. The Undertakers for the purposes of this Order and within the meaning of section 2 of the schedule to the Electric Lighting (Clauses) Act 1899 are the Kirkby-in-Ashfield Urban District Council.

4. The area of supply for the purposes of this Order and within the meaning of section 4 of the schedule to the Electric Lighting (Clauses) Act 1899 shall be the area which is described in the First Schedule to this Order and is more particularly delineated on the map deposited together with this Order at the Board of Trade by the Undertakers and signed by an assistant secretary to the Board of Trade.

5. Subject to the provisions incorporated with this Order the Undertakers are specially authorised by this Order to break up the streets not repairable by the local authority which are mentioned in the Second Schedule to this Order and the railways which are also mentioned in that schedule.

6. The streets and parts of streets throughout which the Undertakers are to lay down suitable and sufficient distributing mains for the purposes of general supply within a period of two years after the commencement of this Order as mentioned in section 21 of the schedule to the Electric Lighting (Clauses) Act 1899 are those mentioned in the Third Schedule to this Order.

7. The maximum prices which may be charged by the Undertakers as mentioned in section 32 of the schedule to the Electric Lighting (Clauses) Act 1899 are those stated in the Fourth Schedule to this Order.

8. This Order shall come into force upon the day when the Act confirming this Order is passed and that day for the purposes of the Electric Lighting (Clauses) Act 1899 shall be the commencement of this Order.

SCHEDULES.

FIRST SCHEDULE.

AREA OF SUPPLY.

The urban district of Kirkby-in-Ashfield as constituted at the commencement of this Order.

SECOND SCHEDULE.

A.D. 1904.

List of Streets not repairable by the Local Authority and Railways which may be broken up by the Undertakers in pursuance of the special powers granted by this Order.

Kirkby-in-Ashfield.

(a) STREETS :—

Station Road Urban Road Victoria Road Cookson Road Chapel Street St. Thomas' Avenue Alexandra Street Edward Street Southwell Road Princes Street North Street East Street Crocus Street Sherwood Rise Bentinck Street Sampson Street Fox Street Reform Street Glebe Street Alfred Street Cobden Street Cross Street Erewash Street Festus Street Forest Street Factory Road Gladstone Street King Street Kingsley Street Milton Street Morley Street New Street Pond Street Portland Street Queen Street School Street Sherwood Street Tennyson Street Unity Street Marlborough Road Hodgkinson Road Fisher Street Sherwood Street (Annesley Woodhouse) Wesley Street (Annesley Woodhouse) Vernon Road Cookson Street Harcourt Street Forster Street Hampden Street Park Street.

(b) RAILWAYS :—

The level crossings—

In Station Road at Kirkby-in Ashfield Midland Railway Station.

In Urban Road at disused Midland Railway Erewash Line.

In Park Lane Midland Railway Erewash Line.

THIRD SCHEDULE.

List of Streets and parts of Streets throughout which the Undertakers are to lay down suitable and sufficient Distributing Mains for the purposes of general supply within a period of Two Years after the commencement of this Order.

Station Road from Railway Station to Low Moor Road Low Moor Road from Station Road to Milton Street Cemetery Road from Station Road to the Cemetery Urban Road Victoria Road Cookson Road Chapel Street.

FOURTH SCHEDULE.

MAXIMUM PRICES.

In this schedule—

The expression "unit" shall mean the energy contained in a current of one thousand ampères flowing under an electro-motive force of one volt during one hour.

SECTION 1.

Where the Undertakers charge any consumer by the actual amount of energy supplied to him they shall be entitled to charge him at the following rates per quarter For any amount up to twenty units eleven shillings and eightpence and for each unit over twenty units sevenpence.

A.D. 1904.

SECTION 2.

Kirkby-in-Ashfield.

Where the Undertakers charge any consumer by the electrical quantity contained in the supply given to him they shall be entitled to charge him according to the rates set forth in section 1 of this schedule the amount of energy supplied to him being taken to be the product of that electrical quantity and the declared pressure at the consumer's terminals that is to say such a constant pressure at those terminals as may be declared by the Undertakers under the Board of Trade regulations.

SAFFRON WALDEN ELECTRIC LIGHTING.

Saffron Walden.

Provisional Order granted by the Board of Trade under the Electric Lighting Acts 1882 and 1888 to the Mayor Aldermen and Burgesses of the Borough of Saffron Walden in respect of the Borough of Saffron Walden in the County of Essex.

Short title.

1. This Order may be cited as the Saffron Walden Electric Lighting Order 1904.

Incorporation of Electric Lighting (Clauses) Act 1899.

2. The provisions contained in the schedule to the Electric Lighting (Clauses) Act 1899 (with the exception of sections 83 and 84 of that schedule) are incorporated with and form part of this Order.

Undertakers.

3. The Undertakers for the purposes of this Order and within the meaning of section 2 of the schedule to the Electric Lighting (Clauses) Act 1899 are the mayor aldermen and burgesses of the borough of Saffron Walden.

Area of supply.

4. The area of supply for the purposes of this Order and within the meaning of section 4 of the schedule to the Electric Lighting (Clauses) Act 1899 shall be the area which is described in the First Schedule to this Order and is more particularly delineated on the map deposited together with this Order at the Board of Trade by the Undertakers and signed by an assistant secretary to the Board of Trade.

Power to break up streets.

5. Subject to the provisions incorporated with this Order the Undertakers are specially authorised by this Order to break up the streets and parts of streets not repairable by the local authority which are mentioned in the Second Schedule to this Order.

Compulsory works.

6. The streets throughout which the Undertakers are to lay down suitable and sufficient distributing mains for the purposes of general supply within a period of two years after the commencement of this Order as mentioned in section 21 of the schedule to the Electric Lighting (Clauses) Act 1899 are those mentioned in the Third Schedule to this Order.

Maximum prices.

7. The maximum prices which may be charged by the Undertakers as mentioned in section 32 of the schedule to the Electric Lighting (Clauses) Act 1899 are those stated in the Fourth Schedule to this Order.

8. At any time within one year after the commencement of this Order the Undertakers may with the consent of and upon such terms and conditions as may be approved by the Board of Trade transfer the Undertaking authorised by this Order to Foote and Milne Limited whose registered office is 66 Victoria Street in the city of Westminster and on such transfer the rights powers authorities obligations and liabilities of the Undertakers in respect of the undertaking shall be transferred to and may be exercised by and shall attach to the said Company and that Company shall subject to the provisions of this Order become the Undertakers for the purposes of this Order.

A.D. 1904.
Saffron
Walden.

Special power
of transfer of
undertaking.

9. This Order shall come into force upon the day when the Act confirming this Order is passed and that day for the purposes of the Electric Lighting (Clauses) Act 1899 shall be the commencement of this Order.

Commence-
ment of Order.

SCHEDULES.

FIRST SCHEDULE.

AREA OF SUPPLY.

The whole of the borough of Saffron Walden as constituted at the commencement of this Order.

SECOND SCHEDULE.

List of Streets and parts of Streets not repairable by the Local Authority which may be broken up by the Undertakers in pursuance of the special powers granted by this Order.

Mandeville Road Victoria Avenue West Field Farmedine Grove Artizans Dwellings New Road Prospect Place Mill Lane Lofts' Lane Sheds' Lane Byrds Farm Lane Burntwood Lane Butlers Road Shire Hill Lane Northend Lane Abbey Farm Road and Infirmary Lane.

The roadways over the railway bridges where the following roads and bridges cross the railway—Newport Road Borough Lane Debden Road South Road and Butlers Road.

THIRD SCHEDULE.

List of Streets throughout which the Undertakers are to lay down suitable and sufficient Distributing Mains for the purposes of general supply within a period of Two Years after the commencement of this Order.

Bridge Street High Street London Road East Street Hill Street George Street King Street Market Street Market Square Market Hill and Church Street.

A.D. 1904.

*Saffron
Walden.*

FOURTH SCHEDULE.

MAXIMUM PRICES.

In this schedule—

The expression “unit” shall mean the energy contained in a current of one thousand ampères flowing under an electro-motive force of one volt during one hour.

SECTION 1.

Where the Undertakers charge any consumer by the actual amount of energy supplied to him they shall be entitled to charge him at the following rates per quarter For any amount up to twenty units thirteen shillings and fourpence and for each unit over twenty units eightpence.

SECTION 2.

Where the Undertakers charge any consumer by the electrical quantity contained in the supply given to him they shall be entitled to charge him according to the rates set forth in section 1 of this schedule the amount of energy supplied to him being taken to be the product of that electrical quantity and the declared pressure at the consumer's terminals that is to say such a constant pressure at those terminals as may be declared by the Undertakers under the Board of Trade regulations.

WALMER ELECTRIC LIGHTING.

Walmer. Provisional Order granted by the Board of Trade under the Electric Lighting Acts 1882 and 1888 to the Urban District Council of Walmer in the County of Kent in respect of the Urban District of Walmer.

Short title. 1. This Order may be cited as the Walmer Electric Lighting Order 1904.

Incorporation of Electric Lighting (Clauses) Act 1899. 2. The provisions contained in the schedule to the Electric Lighting (Clauses) Act 1899 (with the exception of sections 83 and 84 of that schedule) are incorporated with and form part of this Order.

Undertakers. 3. The Undertakers for the purposes of this Order and within the meaning of section 2 of the schedule to the Electric Lighting (Clauses) Act 1899 are the urban district council of Walmer.

Area of supply. 4. The area of supply for the purposes of this Order and within the meaning of section 4 of the schedule to the Electric Lighting (Clauses) Act 1899 shall be the area which is described in the First Schedule to this Order and is more particularly delineated on the map deposited together with this Order at the Board of Trade by the Undertakers and signed by an assistant secretary to the Board of Trade.

5. The streets and parts of streets throughout which the Undertakers are to lay down suitable and sufficient distributing mains for the purposes of general supply within a period of two years after the commencement of this Order as mentioned in section 21 of the schedule to the Electric Lighting (Clauses) Act 1899 are those mentioned in the Second Schedule to this Order.

A.D. 1904.

Walmer.

Compulsory works.

6. The maximum prices which may be charged by the Undertakers as mentioned in section 32 of the schedule to the Electric Lighting (Clauses) Act 1899 are those stated in the Third Schedule to this Order.

Maximum prices.

7. Nothing in the provisions contained in the schedule to the Electric Lighting (Clauses) Act 1899 as incorporated with this Order shall be construed as preventing the Undertakers from entering into or carrying into effect any contract agreement or arrangement which under the Kent Electric Power Act 1902 may be entered into and carried into effect by the Kent Electric Power Company and any authorised Undertakers.

Saving of powers to make contracts &c. with Kent Electric Power Company.

8. Where the exercise of the powers of the Undertakers will involve the breaking up of the street known as Dover road or any other street in the urban district of Walmer immediately adjoining any property belonging to the Admiralty the Undertakers shall three clear days before commencing the execution of the works give to the officer in charge of works Royal Marine Depot Walmer notice in writing of their intention to break up the street. Provided that in cases of emergency it shall suffice if the notice is given as soon as practicable after the emergency has arisen.

Provision for protection of Admiralty.

9. This Order shall come into force upon the day when the Act confirming this Order is passed and that day for the purposes of the Electric Lighting (Clauses) Act 1899 shall be the commencement of this Order.

Commencement of Order.

SCHEDULES.

FIRST SCHEDULE.

AREA OF SUPPLY.

The urban district of Walmer as constituted at the commencement of this Order.

SECOND SCHEDULE.

List of Streets and parts of Streets throughout which the Undertakers are to lay down suitable and sufficient Distributing Mains for the purposes of general supply within a period of Two Years after the commencement of this Order.

The Strand from the Municipal Borough boundary of Deal to Canada Road.

Liverpool Road from the Strand to Alexandra Road.

Dover Road from Canada Road to Station Road Upper Walmer.

A.D. 1904.

Walmer.

THIRD SCHEDULE.

MAXIMUM PRICES.

In this schedule—

The expression "unit" shall mean the energy contained in a current of one thousand ampères flowing under an electro-motive force of one volt during one hour.

SECTION 1.

Where the Undertakers charge any consumer by the actual amount of energy supplied to him they shall be entitled to charge him at the following rates per quarter For any amount up to twenty units thirteen shillings and fourpence and for each unit over twenty units eightpence.

SECTION 2.

Where the Undertakers charge any consumer by the electrical quantity contained in the supply given to him they shall be entitled to charge him according to the rates set forth in section 1 of this schedule the amount of energy supplied to him being taken to be the product of that electrical quantity and the declared pressure at the consumer's terminals that is to say such a constant pressure at those terminals as may be declared by the Undertakers under the Board of Trade regulations.

WHICKHAM ELECTRIC LIGHTING.

Whickham. *Provisional Order granted by the Board of Trade under the Electric Lighting Acts 1882 and 1888 to the Urban District Council of Whickham to authorise the Council to transfer the Undertaking authorised by the Whickham Electric Lighting Order 1903 to the County of Durham Electrical Power Distribution Company Limited.*

Short title. 1. This Order may be cited as the Whickham Electric Lighting (Transfer of Powers) Order 1904.

Transfer of powers under Order of 1903. 2. At any time within one year after the passing of the Act confirming this Order the Whickham Urban District Council may with the consent of and upon such terms and conditions as may be approved by the Board of Trade transfer the undertaking authorised by the Whickham Electric Lighting Order 1903 to the County of Durham Electrical Power Distribution Company Limited and on such transfer the rights powers authorities obligations and liabilities of that council in respect of that undertaking shall be transferred to and may be exercised by and shall attach to that Company who shall subject to the provisions of that Order become the Undertakers for the purposes of that Order and that Order shall be construed accordingly.

YARDLEY RURAL DISTRICT ELECTRIC LIGHTING. A.D. 1904.

Provisional Order granted by the Board of Trade under the Electric Lighting Acts 1882 and 1888 to the Rural District Council of Yardley in respect of the Rural District of Yardley in the County of Worcester. Yardley.

1. This Order may be cited as the Yardley Rural District Electric Lighting Order 1904. Short title.

2. The provisions contained in the schedule to the Electric Lighting (Clauses) Act 1899 (with the exception of sections 83 and 84 of that schedule) are incorporated with and form part of this Order. Incorporation of Electric Lighting (Clauses) Act 1899.

3. The Undertakers for the purposes of this Order and within the meaning of section 2 of the schedule to the Electric Lighting (Clauses) Act 1899 are the rural district council of Yardley. Undertakers.

4. The area of supply for the purposes of this Order and within the meaning of section 4 of the schedule to the Electric Lighting (Clauses) Act 1899 shall be the area which is described in the First Schedule to this Order and is more particularly delineated on the map deposited together with this Order at the Board of Trade by the Undertakers and signed by an assistant secretary to the Board of Trade. Area of supply.

5. Subject to the provisions incorporated with this Order the Undertakers are specially authorised by this Order to break up the streets and parts of streets not repairable by the local authority which are mentioned in the Second Schedule to this Order. Power to break up streets.

6. The streets and parts of streets throughout which the Undertakers are to lay down suitable and sufficient distributing mains for the purposes of general supply within a period of two years after the commencement of this Order as mentioned in section 21 of the schedule to the Electric Lighting (Clauses) Act 1899 are those mentioned in the Third Schedule to this Order. Compulsory works.

7. The maximum prices which may be charged by the Undertakers as mentioned in section 32 of the schedule to the Electric Lighting (Clauses) Act 1899 are those stated in the Fourth Schedule to this Order. Maximum prices.

8. This Order shall come into force upon the day when the Act confirming this Order is passed and that day for the purposes of the Electric Lighting (Clauses) Act 1899 shall be the commencement of this Order. Commencement of Order.

SCHEDULES.

FIRST SCHEDULE.

AREA OF SUPPLY.

The rural district of Yardley as constituted at the commencement of this Order.

A.D. 1904.

SECOND SCHEDULE.

Yardley.

List of Streets and parts of Streets not repairable by the Local Authority which may be broken up by the Undertakers in pursuance of the Special Powers granted by this Order.

STREETS :—

Sparkhill Greet Springfield and Wake Green—

Tenby Road Passey Road Towyn Road Dovey Road Oakwood Road
Greswolde Road Nansen Road Grove Road Woodlands Road
Solihull Road Knowle Road Fraser Road Gough Road Medley
Road Holte Road Tomey Road Colebrook Road Dyott Road
St. Agnes' Road Hayfield Road Frederick Road Old Grange
Road Ivor Road Esme Road Ryland Road Park Road Oxford
Road Barrows Road Ansell Road Roderick Road.

Hay Mills—

James Road Flora Road Geraldine Road Kathleen Road Ada Road
Hay Road Howard Road Boughton Road Henry Road Willard
Road Kings Road.

Stechford—

Northcote Road commencing at Albert Road and ending in a
cul-de-sac 65 yards from the commencement Royston Road
Wynstanley Road Lyttleton Road Morden Road Francis Road
Station Road on the bridge over the London and North Western
Railway (Birmingham to Rugby Branch) at Stechford Station.

Acocks Green—

New Avenue Westfield Road Alexander Road Greswolde Park Road
Roberts Road Rushey Lane Road from Oxford Road to railway
bridge Yardley Road on the bridge over the Great Western
Railway (Oxford and Birmingham Branch) at Acocks Green
Station Stockfield Road on the bridge over the Great Western
Railway (Oxford and Birmingham Branch) at Acocks Green.

Yardley—

Donkey Lane Milton Crescent Church Road on the bridge over
the London and North Western Railway (Birmingham to Rugby
Branch) at Yardley.

Kitts Green—

Lea Road on the bridge over the London and North Western
Railway (Birmingham to Rugby Branch) near Lea Hall unnamed
road (leading from Pool Lane to Tile Cross in the county of
Warwick) on the bridge over the London and North Western
Railway (Birmingham to Rugby Branch) at Kitts Green.

Tyseley—

Unnamed road (leading from Greet to Yardley at Tyseley) on the
bridge over the Great Western Railway (Oxford and Birmingham
Branch).

THIRD SCHEDULE.

A.D. 1904.

Yardley.

List of Streets and parts of Streets throughout which the Undertakers are required to lay down suitable and sufficient Distributing Mains for the purposes of general supply within a period of Two Years after the commencement of this Order.

Stratford Road from the City of Birmingham Boundary to the River Cole.

Warwick Road from the junction with Stratford Road to Greet Bridge.

FOURTH SCHEDULE.

MAXIMUM PRICES.

In this schedule—

The expression "unit" shall mean the energy contained in a current of one thousand ampères flowing under an electro-motive force of one volt during one hour.

SECTION 1.

Where the Undertakers charge any consumer by the actual amount of energy supplied to him they shall be entitled to charge him at the following rates per quarter For any amount up to twenty units eleven shillings and eightpence and for each unit over twenty units sevenpence.

SECTION 2.

Where the Undertakers charge any consumer by the electrical quantity contained in the supply given to him they shall be entitled to charge him according to the rates set forth in section 1 of this schedule the amount of energy supplied to him being taken to be the product of that electrical quantity and the declared pressure at the consumer's terminals that is to say such a constant pressure at those terminals as may be declared by the Undertakers under the Board of Trade regulations.

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